

1.

CASE #	CASE NAME	HEARING NAME
CVME2507497	RODRIGUEZ VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Unopposed Motion for Attorney's Fees is granted. Multiplier Denied. Attorney's Fees awarded in the reasonable amount of \$17,031.00 and Costs of \$1,112.98.

Plaintiff moves for an order awarding attorneys' fees, costs, and expenses ("Motion") in the amount of \$26,464.93. This amount consists of (1) \$19,501.50 in attorney fees; (2) \$1,112.98 in costs and expenses; and (3) 0.3 multiplier enhancement on the attorney fees (or \$5,850.45). The motion is made pursuant to California Civil Code Section 1794(d) because: (1) the parties agreed to settle the matter and as part of such agreement, the parties agreed that Plaintiff's fees, costs, and expenses should be determined by a noticed motion; (2) the parties agreed that for the sake of this Motion, Plaintiff is the prevailing party; and (3) Plaintiff reasonably incurred these attorneys' fees, costs, and expenses in connection with the commencement and prosecution of this action.

Civ. Code § 1794(d) provides that if a buyer prevails in an action under the Song-Beverly Act, the buyer shall be allowed to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code § 1794(d).) The prevailing buyer must establish entitlement to fees and the reasonableness of the fees claimed. (Reynolds v. Ford Motor Co. (2020) 47 Cal.App.5th 1105, 1110.) Here, the parties have agreed that Plaintiff is the prevailing party.

California courts use the lodestar method to calculate reasonable attorney fees under fee-shifting statutes. The lodestar is calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. (PLCM Grp. Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The party seeking fees bears the burden of documenting the appropriate hours expended and hourly rates. (Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass'n (2008) 163 Cal. App.4th 550, 564.) A verified fee bill is prima facie evidence that the services listed were necessarily incurred, and a declaration attesting to its accuracy is entitled to credence in the absence of a clear indication the records are erroneous. (Horsford v. Bd. of Trustees of Cal. State Univ. (2005) 132 Cal.App.4th 359, 396.)

Once the moving party meets its burden, the burden shifts to the opposing party to demonstrate that the claimed fees are excessive or unreasonable. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Premier Med. Mgmt. Sys., supra, 163 Cal.App.4th at 564.) The Court has an independent duty to review attorney documentation of hours expended; padding in the form of inefficient or duplicative efforts is not subject to compensation. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Motion is unopposed. The Hourly rates and billable hours were not contested. The Attorney hourly rates are consistent with Riverside County rate and amount to \$13,326.50. The requested Paralegal amount requested is \$6,175. This was based at a rate of \$250/hr. This Court finds \$150/hr to be reasonable for Riverside County Paralegal Rates and adjusts down to \$3,705. Attorney's fees in the amount of \$17,031.00 awarded.

Plaintiff seeks a 0.3 multiplier (5,850.45) The Court declines to apply a multiplier. The lodestar method is designed to produce a reasonable fee award in the typical case, and additional enhancement is appropriate only where the lodestar figure does not adequately account for factors not already reflected in the lodestar calculation. This case does not warrant enhancement. It was a routine Song-Beverly Act matter that settled on a CCP § 998 offer without a dispositive motion, trial, or novel legal issue. The contingent nature of the representation and any delay in payment are already fully reflected in the market rate lodestar the Court has approved for contingency based Song-Beverly work. Nothing in the record reflects extraordinary skill, exceptional results against heavy odds, or preclusion of other employment beyond what the lodestar itself compensates.

2.

CASE #	CASE NAME	HEARING NAME
CVME2507574	DANKO RESTAURANT GROUP, INC VS PATTAN	MOTION FOR SUMMARY ADJUDICATION ON CROSS-COMPLAINT

Tentative Ruling: Request For Continuance is Denied. For the Third Cause of Action, Motion for Summary Adjudication is Granted as to Sandra Danko in her Individual Capacity and Denied as to Robert Danko.

Danko Restaurant Group, Inc. ("Danko Restaurant Group"), operated a restaurant and bar in commercial space owned by Robles Brothers Investments, LLC ("Robles Brothers"). Plaintiffs Danko Restaurant Group and Kenneth Danko allege that proposed buyers agreed to purchase the business assets for \$300,000. They assert that the transaction failed after the buyers obtained a new lease, and that the buyers and Defendant Robles Brothers then retained or controlled substantial restaurant assets without payment. Plaintiffs assert contract, tort, statutory, and lease-related claims against Robles Brothers and other defendants.

Defendant/Cross-Complainant Robles Brothers' cross-complaint concerns a different set of alleged wrongs. It alleges that Danko Restaurant defaulted under the commercial lease. It alleges that Kenneth Danko and Robert Danko are liable on alter ego or related theories. It asserts that assets were diverted from Danko Restaurant. It asserts that certain statements and transfers were fraudulent. It also asserts that cross-defendants trespassed or otherwise interfered with Robles Brothers' property. The cross-complaint, filed 9/16/25, asserts: (1) breach of lease, (2) common count, (3) fraudulent conveyance, (4) fraud and deceit, and (5) trespass.

As is relevant to the present motion, the 3rd cross-claim alleges that Cross-Defendants Robert and Sandra Danko executed a quitclaim deed dated 10/30/24 transferring their Temecula residence to the Danko Family Trust, which was recorded on 12/11/24. It